

Pankaj S/O Nanaji Choudhary And 7 Others vs State Of Mah. Thr. Pso S Wathoda Nagpur ... on 28 March, 2022

Author: Amit B. Borkar

Bench: V. M. Deshpande, Amit B. Borkar

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
: NAGPUR BENCH : NAGPUR.

CRIMINAL APPLICATION [APL] NO. 1376 OF 2021

- APPLICANTS : 1] Pankaj S/o Nanaji Choudhary (Husband)
Aged about 27 years, Occu. Private Job.
- 2] Nanaji S/o Namahun Choudhary (Father-in-law)
Aged about 51 years, Occu. Private.
- 3] Shantabai W/o Nanaji Choudhary,
(Mother-in-law) Aged about 48 years,
Occupation: Housewife.
- 4] Rajesh @ Rajendra S/o Nanaji Choudhary,
(Brother-in-law), Aged about 23 years,
Occupation: Private.
- Applicant nos.1 to 4 are R/o 13, New Shankar
Nagar, Raut Nagar, Dighori Naka, Umred Road,
Nagpur, Taq. and Dist. Nagpur.
- 5] Mukesh S/o Ishwari Pardhi,
Aged about 45 years, Occu. Private.
- 6] Sonu W/o Mukesh Pardhi,
Aged about 30 years, Occu. Housewife,
- Applicant nos.5 and 6 R/o Near Samoada Convent,
C/o Rajesh Gedam, Gonhisim, Nagpur - 440 034.
- 7] Ravindra S/o Somaji Gautam,
Aged about 36 years, Occu. Agriculturist,
R/o Nakpura, Nakutola, Thana Lalbarha,
Dist. Balaghat
- 8] Sau. Mona W/o Pankaj Chaudhary (Wife)

Aged about 26 years, Occu. Housewife,
R/o Gram Mourya, Thana Lamta,
Dist. Balaghat (Madhya Pradesh)

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VERSUS

NON-APPLICANT : State of Maharashtra,
through Police Station Officer,
Police Station, Wathoda, Nagpur.
Tah. and Dist. Nagpur

Shri Saurabh Raut, Advocate for the applicants
Shri S. M. Ghodeswar, A. P .P. for the non-applicant/State

CORAM : V. M. DESHPANDE and
AMIT B. BORKAR, JJ.
DATE : MARCH 28, 2022.

ORAL JUDGMENT (Per : Amit B. Borkar, J.)

1. Rule. Rule is made returnable forthwith. Heard finally by consent of the parties.
2. By this joint application under Section 482 of the Code of Criminal Procedure, the applicant nos.1 to 7 are challenging registration of the first information report vide Crime No. 14/2020, dated 17.01.2020 filed against them by applicant no.8 with non- applicant - Police Station, Wathoda, Nagpur for the offence punishable under Sections 498-A, 294, 323 and 506 of the Indian Penal Code and consequent charge-sheet bearing No. 53/2020 dated 3 APL1376.21.odt 24.09.2020 and criminal case bearing Regular Criminal Case No. 2067/2020 pending before the learned Judicial Magistrate, First Class, Nagpur.
3. The first information report in question came to be registered against the applicant nos.1 to 7 with accusation that they have physically and mentally harassed applicant no.8 for non- payment of dowry. The investigating agency after completion of the investigation filed the charge-sheet against applicant nos.1 to 7.
4. We have heard Shri Saurabh Raut, learned counsel for the applicants and Shri S.M. Ghodeswar, learned Additional Public Prosecutor the non-applicant/State.
5. During pendency of the proceedings before the trial Court, the applicant nos.1 to 7 and applicant no.8 have arrived at a mutual settlement. The applicants have filed a pursoris annexing a copy of the affidavits of applicant no.1/husband and applicant no.8/ wife.

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6. Today, the applicant no.1/husband and applicant no.8/wife are personally present before the Court. They state that they have resolved their dispute amicably and they have decided to take divorce by mutual consent and accordingly, a petition under Section 13-B of the Hindu Marriage Act has already been filed. Applicant no.8/wife has stated that she has amicably resolved the dispute and there is no objection for quashing proceedings against the applicants. She states that the consent given by her is voluntary.

7. We have gone through the allegations in the first information report and the material produced in the form of charge- sheet. On going through the same, we are satisfied that the ingredients of the offence alleged against the applicants are not satisfied even if the allegations are accepted and the material produced in the charge-sheet is taken on its face value.

8. The Hon'ble Apex Court in Narinder Singh .vs. State of Punjab, reported in 2014 AIR SCW 2065 has observed that the Court cannot decline to quash criminal case in which the first information report incorporates a particular provision, which is a serious offence 5 APL1376.21.odt or an offence against the society. The Court shall make all endeavor whether the first information report indeed discloses the ingredient of such offence and Court can accept the settlement and quash the first information report, if the Court is of the opinion that such offence is unnecessarily incorporated in the first information report.

9. In view of amicable resolution of the dispute between the applicant nos.1 to 7 and applicant no.8 and in view of the judgment of Hon'ble Apex Court in Narinder Singh's case (supra) , there is no impediment for quashing of the first information report and the consequent charge-sheet and criminal proceedings against the applicants. We, therefore, pass the following order :

ORDER

1. The Criminal Application is allowed.

2. Rule is made absolute in terms of prayer clause (a), which reads as under :-

"Quash and set aside FIR/Crime No. 14/2020, dated 17th January, 2020 registered by non- applicant - Police Station, Wathoda, Nagpur against applicant nos.1 to 7 alleging commission of offences punishable under Sections 498-A, 294, 323 and 506 6 APL1376.21.odt of the Indian Penal Code and all the consequential proceedings arising there from including the Final Report / Charge-sheet No. 53/2020 dated 24 th September, 2020 submitted before the learned Judicial Magistrate, First Class, Nagpur, Dist. Nagpur by the non-applicant - Police Station, Wathoda, Dist. Nagpur, alleging commission of the abovementioned offences against the applicant Nos.1 to 7 which is registered as and criminal case bearing Regular Criminal Case No. 2067/2020.

3. The application is disposed of accordingly.

(AMIT B. BORKAR, J.)

(V.M.DESHPANDE, J.)

Diwale